



File No.: EXP202406485

RESOLUTION OF RIGHTS PROCEDURE

Considering the complaint registered on March 19, 2024, by A.A.A. (hereinafter, the claimant) before this Agency against the D.G. OF THE POLICE (hereinafter, the respondent) for not having duly attended to their request to exercise the rights established in Organic Law 7/2021, of May 26, on the protection of personal data processed for the purposes of prevention, detection, investigation, and prosecution of criminal offenses and enforcement of criminal sanctions (hereinafter, LO 7/2021). After carrying out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), applicable to the processing of the present complaint, in accordance with Article 52.2 of LO 7/2021, the following facts have been established:

FACTS

FIRST: The claimant exercised the rights of access and deletion without their request receiving the legally established response.

The claimant states that, on 01/29/24, they exercised the rights of access and deletion of their personal data from the SIDENPOL file before the GENERAL DIRECTORATE OF THE POLICE.

On 02/08/24, the respondent replied by granting access to the reports in their database and indicated that they would proceed to delete certain reports, stating that the request could not be fully attended to due to formal defects. The respondent indicated that they must accompany the judicial certifications that prove the finality of the resolutions and completion of the procedures regarding the rest of the reports that are to be deleted.

On 02/19/24, the claimant submitted a written statement of allegations against the aforementioned resolution requesting that the following be indicated individually for each report: the offense committed and the Judicial Authority to which it has been referred, grounding their allegations in the Judgment of the National Court of 03/28/11 (REC.21/2010).

On 02/29/24, the respondent dismissed the allegations made, indicating the following: "In response to the request that the respondent be the one to electronically obtain from the competent body the resolution issued in the various judicial proceedings, it is informed that in the absence of corporate networks or data intermediation platforms, or other electronic systems enabled to the...

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effect to request the relevant documentation, and given that the referral through ordinary channels would result in an excessive prolongation of the procedure (...), it becomes necessary for the interested party themselves to provide a copy of the resolution issued in the aforementioned files. (...)"

On 03/03/24, the claimant exercised their right of access to the reports in a individualized manner. The claimant concludes that the respondent has violated the rights of access and deletion by resolving their requests arbitrarily and contrary to the criteria established in the Judgment of the National Court of 28/03/11.

SECOND: On May 23, 2024, this Agency resolves regarding the complaint filed by the claimant and their unaddressed request for access and deletion. It concludes by inadmissibly processing the complaint as follows:

"Once the reasons presented by the respondent, which are in the file, have been analyzed, this Agency considers that the denial of the request made by the claimant is in accordance with the regulations on the protection of personal data."

THIRD: The claimant, in total disagreement with the resolution, submits a request for reconsideration which is resolved on May 23, 2024, in a favorable manner, leading to the current rights procedure. In this, they request the deletion of the data in the name of A.A.A. from the reports of SIDENPOL presented in the request for reconsideration and, in the event that the deletion of this data is denied,

they request access to individualized information for each of the reports in which the deletion is denied. FOURTH: In light of the events on August 19, 2024, the original complaint is again forwarded to the respondent, along with the request for reconsideration submitted by the claimant and the resolution of that request, so that within fifteen working days they may present any arguments they deem appropriate. The respondent presents the following arguments:

"In this regard, it is necessary to refer to this Unit on July 15, 2024, regarding the lack of knowledge this Unit has about the respective courts that have dealt with the different cases, which are competent to issue a certificate regarding the finality of the resolution and conclusion of the various procedures, which are assigned based on the distribution carried out in the judicial seat, to the extent that the reports are sent following the dictates of Articles 284 and following of the Criminal Procedure Law, to the competent court on duty in the judicial district corresponding to the police unit processing it, without systematically obtaining any notification regarding the subsequent distribution of the matter, in accordance with the distribution rules established by each Deanery, and it is also the case that Mr. A.A.A., being a party to these proceedings, should have had access to the judicial files, or at least to the notification of the resolutions that may have been issued, thus having more detailed information in this regard.

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Notwithstanding the above, the information relating to the courts to which each of the reports was sent is forwarded, as they were on duty at the time of the referral, in order to facilitate the interested party's request for the necessary judicial certifications."

FIFTH: After examining the document submitted by the responding party, it is transferred to the claiming party, so that, within a period of fifteen working days, they may formulate the allegations they deem appropriate, summarizing the following allegations:

"That, after the resolution of the appropriate file, the AEPD urges the DGP to the SUPPRESSION of the personal data of the interested party that appears in the reports of the SIDENPOL file that are included in the claim of this procedure."

LEGAL GROUNDS

I

Competence

The Presidency of the AEPD is competent to resolve this matter, in accordance with the provisions of Article 48 of the aforementioned LO 7/2021, and as provided in Article 47 of the LOPDGDD.

In accordance with the provisions of Article 65.4 of the LOPDGDD, which has established a mechanism prior to the admission of claims submitted to the Spanish Agency for Data Protection, which consists of forwarding them to the data protection delegates designated by the controllers or processors, for the purposes provided in Article 37 of the aforementioned regulation, or to them when they have not been designated, so that they proceed to analyze said claims and respond to them within one month, prior to the admission of the claim that gives rise to this procedure, the claim was forwarded to the responsible entity so that it could proceed with its analysis, respond to this Agency within one month, and prove that it has provided the claimant with the due response, in the event of exercising the rights regulated in Articles 21, 22, and 23 of LO 7/2021.

On August 19, 2024, for the purposes provided in Article 64.2 of the LOPDGDD, the claim submitted was admitted for processing. This admission agreement determines the opening of the present procedure for the lack of attention to a request for the exercise of the right established in Article 22 and of LO 7/2021, regulated in Article 64.1 of the LOPDGDD, according to which:

"1. When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of the following article. In this case, the deadline for resolving the procedure shall be six months from the date on which the claimant was notified of the admission agreement. After that period, the interested party may consider their

claim accepted.”

II

Rights of individuals regarding personal data protection

The rights of individuals regarding personal data protection, when the processing of data is aimed at the purposes indicated in Article 1 of LO 7/2021, are regulated in Articles 21, 22, and 23 of that regulation. These articles establish the information that must be made available to the interested party and recognize the rights of access, rectification, deletion, and limitation of processing.

The formal aspects related to the exercise of these rights are established in Article 20 of LO 7/2021.

The communication addressed to the interested party regarding their request must be expressed in a concise, intelligible manner, easily accessible, and in clear and simple language for all individuals, including those with disabilities.

III

Right of access

In accordance with the provisions of Article 22 of LO 7/2021, “1. The interested party shall have the right to obtain from the data controller confirmation as to whether or not personal data concerning them are being processed. If the processing is confirmed, the interested party shall have the right to access such personal data, as well as the following information:

- a) The purposes and the legal basis for the processing.
- b) The categories of personal data concerned.
- c) The recipients or categories of recipients to whom the personal data have been disclosed, in particular, the recipients established in countries that are not members of the European Union or international organizations.
- d) The retention period for the personal data, where possible, or, if not, the criteria used to determine that period.
- e) The existence of the right to request from the data controller the rectification or deletion of personal data concerning the interested party or the limitation of its processing.
- f) The right to lodge a complaint with the competent data protection authority and the contact details of the same.
- g) The communication of the personal data subject to processing, as well as any available information about its origin, without revealing the identity of any natural person, especially in the case of confidential sources.

2. When the controller processes a large amount of information concerning the interested party and they exercise their right of access without specifying whether it refers to all or part...

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of the data, the controller may require the data subject to specify the request within a period of ten days.

3. The right of access shall be deemed granted if the data controller provides the data subject with a remote, direct, and secure system that permanently guarantees access to all of their personal data. The notification informing the data subject of the procedure initiated through this system will allow the denial of their access request made through other means. If remote access does not provide all the information contained in section 1, the data subject shall have the right to request it.

4. When the data subject chooses a means other than the one offered that incurs a disproportionate cost, the request will be considered excessive, and the data subject will bear the excess cost that their choice entails. In this case, the data controller will only be required to ensure that the satisfaction of the right of access through the proposed means occurs without undue delay. If the data subject does not bear the excess cost, access will be provided through the means initially proposed by the data controller.”

For its part, Article 20.6 of LO 7/2021 establishes:

“When the data controller has reasonable doubts about the identity of the individual making the request referred to in Articles 22 and 23, they shall require the individual to provide the additional information necessary to confirm their identity within ten days. If this information is not provided within that period, the request will be considered withdrawn by means of a reasoned resolution. The period referred to in section 4 shall begin to be counted from the date on which the additional information is

provided.”

IV

Right to Erasure

In accordance with the provisions of Article 23 of LO 7/2021, “2. The data controller, on their own initiative or as a result of the exercise of the data subject's right to erasure, shall erase personal data without undue delay and, in any case, within a maximum period of one month from the time they become aware, when the processing infringes Articles 6, 11, or 13, or when the personal data must be erased by virtue of a legal obligation to which they are subject.

3. Instead of proceeding with the erasure, the data controller shall limit the processing of personal data when any of the following circumstances occur:

a) The data subject questions the accuracy of the personal data and its accuracy or inaccuracy cannot be determined.

b) The personal data must be retained for evidentiary purposes.

When the processing is limited under letter a), the data controller shall inform the data subject before lifting the limitation on processing.

5. When personal data has been rectified or erased or the processing has been limited, the data controller shall notify the recipients, who must rectify or erase the personal data under their responsibility or limit its processing.”

Furthermore, Article 24 of LO 7/2021 establishes a series of situations in which the exercise of the rights to information, access, rectification, erasure of personal data, and limitation of processing may be restricted. In this regard, the aforementioned article states the following:

“1. The data controller may postpone, limit, or omit the information referred to in Article 21.2, as well as deny, in whole or in part, requests for the exercise of the rights provided for in Articles 22 and 23, as long as, taking into account the fundamental rights and legitimate interests of the affected person, it is necessary and proportionate to achieve the following purposes:

a) Prevent hindrances to inquiries, investigations, or judicial proceedings.

b) Avoid harm to the prevention, detection, investigation, and prosecution of criminal offenses or to the execution of criminal sanctions.

c) Protect public safety.

d) Protect National Security.

e) Protect the rights and freedoms of other persons.

2. In the event of a restriction of the rights provided for in Articles 22 and 23, the data controller shall inform the data subject in writing without undue delay, and in any case, within one month from the time they become aware, of such restriction, the reasons for it, as well as the possibilities of lodging a complaint with the data protection authority, without prejudice to any other judicial actions that may be exercised under the provisions of this Organic Law.

The reasons for the restriction may be omitted or replaced with neutral wording when the disclosure of the reasons for the restriction may jeopardize the purposes referred to in the previous section.

3. The data controller shall document the factual or legal grounds on which the decision to deny the exercise of the right of access is based. This information shall be available to the data protection authorities.”

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V

Conclusion

We will begin by stating that this claim will only consider whether the requested rights, the right of access and erasure, have been addressed or not.

Regarding the issue requested by the claimant of “That, after the resolution of the appropriate file, the AEPD urges the DGP to the ERASURE of the personal data of the interested party that appears in the reports of the SIDENPOL file that are included in the claim of this procedure.” It must be said that the

right to erasure is a personal right and must be exercised by the interested person or a third party by representation, before the data controller. Therefore, the claimant will be the one who must request the erasure of the data from the data controller.

During the processing of this procedure, the entity being claimed has responded to this Agency, but does not prove to have addressed what was requested by the claiming party, sending the mandatory response to their request.

As stated in the resolution of the appeal for reconsideration from which this procedure originates, the requested right of access was addressed incompletely since, although individualized information was provided for each report, the Judicial Authority to which it had been sent was not communicated.

To the above, it is necessary to add that, in any case, it cannot be accepted that the response that corresponds to be given can be manifested in the course of a mere administrative procedure, such as the formulation of allegations due to the present procedure, initiated precisely for not duly addressing the request in question.

The aforementioned regulations do not allow for the request to be overlooked as if it had not been raised, leaving it without the response that the data controllers are obliged to issue, even in the event that there are no data in the files or even in those cases where it does not meet the required criteria, in which case the recipient of such request is also obliged to require the correction of the observed deficiencies or, if applicable, deny the request with justification indicating the reasons why the right in question cannot be considered.

Therefore, the request made obliges the controller to provide an express response in any case, using any means that justifies the receipt of the response.

Given that no copy of the necessary communication that must be directed to the claiming party informing them about the decision made regarding the exercise of rights request is attached, it is appropriate to uphold the claim that originated this procedure.

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In view of the cited provisions and others of general application, the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD the claim made by A.A.A. considering that the provisions of articles 15 and 22 of LO 7/2021 have been infringed, and to urge the GENERAL DIRECTORATE OF POLICE with NIF S2816015H, to send, within ten working days following the notification of this resolution, to the claiming party a certification addressing the requested rights or denying it with justification indicating the reasons why it is not appropriate to address the request, in accordance with what is established in the body of this resolution. The actions carried out as a result of this Resolution must be communicated to this Agency within the same period. Non-compliance with this resolution could result in the commission of the infringement considered in article 58.m) of LO 7/2021, which will be sanctioned in accordance with article 77 of LOPDGDD.

SECOND: NOTIFY this resolution to A.A.A. and to the GENERAL DIRECTORATE OF POLICE.

In accordance with the provisions of article 50 of LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with art. 48.6 of LOPDGDD, and in accordance with the provisions of article 123 of LPACAP, the interested parties may optionally file a motion for reconsideration before the Presidency of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in article 46.1 of the aforementioned Law.

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Olga Pérez Sanjuán

The Deputy Director General of Data Inspection, in accordance with art. 48.2 LOPDGDD, due to the vacancy of the Presidency and Deputy Presidency

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